

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

19. JESSICA SEABOLD V. SHAUN SEABOLD

26FL0081

Petitioner filed a Request for Order (RFO) seeking child custody and parenting plan orders, as well as child and spousal support orders, on January 29, 2026. Petitioner concurrently filed an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 25, 2026 and a review hearing on April 23, 2026. Proof of Service shows Respondent was personally served with the necessary documents, excluding the Income and Expense Declaration and blank FL-150 as well as the referral to CCRC.

Both parties appeared at CCRC and reached a full agreement. Parties submitted a stipulation to the court, which the court adopted as its order on February 26, 2026. The court finds the parties' stipulation continued to be in the best interests of the minors, and therefore, maintains those orders in full force and effect. The court finds this portion of the RFO to be moot and as such, drops it from calendar.

The court drops Petitioner's request for child and spousal support from calendar due to the failure to properly serve Respondent with the Income and Expense Declaration.

All prior orders not in conflict with this order remain in full force and effect.

TENTATIVE RULING #19: THE COURT DROPS THE CHILD CUSTODY AND PARENTING PLAN PORTION OF THE RFO FROM CALENDAR AS MOOT. THE COURT MAINTAINS THE CURRENT ORDERS AS TO CUSTODY AND PARENTING TIME. THE COURT DROPS PETITIONER'S REQUEST FOR CHILD AND SPOUSAL SUPPORT FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE RESPONDENT WITH THE INCOME AND EXPENSE DECLARATION. ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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20. JUSTIN SIMARRO V. YAJAIRA SIMARRO

PFL20200099

On November 6, 2025, Respondent filed a Request for Order (RFO) seeking an order for Petitioner to pay credit card debts.

On November 17th, Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC).

Respondent filed another RFO on January 16, 2026.

On February 13, 2026, Respondent filed a Proof of Service indicating service of an “FL300, ex parte” and an “FL300.” There are currently three RFOs pending before the court and the Proof of Service does not specify which one was served. Additionally, the Notice of Tentative Ruling was not served, nor was a blank Responsive Declaration to Request for Order. Without a properly completed Proof of Service the matter cannot be heard. The November 6, 2025 RFO and the January 16, 2026 RFO are both dropped from calendar due to lack of proper service.

According to the Proof of Service, the “FL410” was personally served on Petitioner.

Parties appeared for the hearing on February 26, 2026. The court arraigned Petitioner on the OSC. Petitioner requested additional time to hire counsel. The court continued the OSC for further arraignment to April 23, 2026 at 1:30 PM.

Parties are ordered to appear for the arraignment.

The court continued the November 6, 2025, RFO to allow Respondent time to file a corrected Proof of Service.

Respondent filed Proof of Service on April 1, 2026 showing Respondent was personally served with all the required documents.

Parties are ordered to appear on the RFO. The RFO will trail the OSC.

TENTATIVE RULING #20: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.